

WHAT IT EMPLOYMENT CONTRACTS SAY

All leading IT firms have clauses that disallow secondary employment, although their contracts do not specifically mention 'moonlighting'

TATA CONSULTANCY SERVICES (TCS)

▶ "Either during the period of your traineeship or employment as a confirmed employee of TCSL, you are not permitted to undertake any other employment, business, assume any public or private office, honorary or remunerative, without the prior written permission of TCSL."

INFOSYS

▶ "You agree not to undertake employment, whether full-time or part-time, as the Director/ Partner/Member/Employee of any other organisation/ entity engaged in any

form of business activity without the consent of Infosys. The consent may be given subject to any terms and conditions that the company may think fit and may be withdrawn at any time at the discretion of the company."

Infosys even has a non-compete clause for employees for six months after leaving the firm, which prohibits them from working with any competitor such as TCS, Accenture, IBM, Cognizant, or Wipro.

WIPRO

▶ "You are required to engage yourself exclusively in the work assigned by Wipro and

you shall not take up any independent or individual assignments (whether part-time or full time, in an advisory capacity or otherwise) directly or indirectly without the express written consent of your Business Unit Head."

TECH MAHINDRA

▶ "Your position with the company calls for whole-time employment and you will devote yourself exclusively to the business of the company. You will not take up any other work for remuneration (part-time or otherwise) or work on advisory capacity or be interested directly or indirectly (except as shareholder or debenture

holder) in any other trade or business, during your employment with the company, without written permission from the company."

HCL TECHNOLOGIES

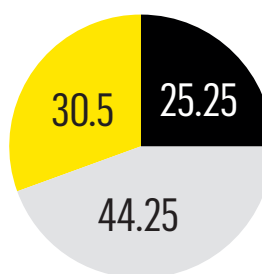
▶ "You agree not to undertake employment whether full-time or part-time, as the Director/ Partner /Member/ Employee of any other organisation or entity engaged in any form of business activity without the consent of HCL. The consent may be given subject to any terms and conditions that the company may think fit and may be withdrawn at the discretion of the company."

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Why would someone risk their primary job and health for such a work schedule? One reason could be that employees feel their compensation has not risen in proportion to their workload. And so, at times they find other avenues for their under-utilised skills, and at other times they pursue their passion and make some money.

"Time of work is defined in the employment contract, but you ask employees to work more. You must give them some incentive. That's not the practice now, so why is the organisation cribbing?" asks IT veteran Pai, who is now Chairman of Aarin Capital. He says moonlighting happens across levels, including seniors in the software services industry who help out start-ups for a fee without the knowledge of the primary organisation. He also flags stagnating fresher salaries as one of the main reasons: "First, you must pay people better in the first five years of their career because right now they are exploiting them." Agrees Anand Lunia, Founding Partner of early-stage VC fund India Quo-

BUSINESS TODAY POLL DO YOU THINK MOONLIGHTING IS CHEATING?



- Yes, it definitely is cheating
- No. My free time, my choice
- It depends on the contract with my employer

SAMPLE SIZE 5,500 (ACROSS TWITTER, LINKEDIN, TELEGRAM, YOUTUBE AND INSTAGRAM ON OCTOBER 1, 2022)

FIGURES ARE SHARE OF RESPONDENTS IN PER CENT

tient: "Some industries have to accept the reality of what they are and not live in their glorious past. The entry-level IT salaries haven't risen at all in the past 25 years. Not even in pace with inflation."